

IN THE COURT OF SH. ANUJ KUMAR SINGH LD. CJM, PATIALA

HOUSE COURTS, NEW DELHI

Misc. Application No. _____ of 2025

In

FIR No. 538/2024

IN THE MATTER OF:

State

..... Prosecution

Versus

Unknown Persons

.....Accused

In Re:

P. Haji Basha

....Applicant

Versus

State

..... Prosecution

FIR No. 538/2024 dated 27.11.2024

registered for offence U/s 318,319,61(2)

BNS,2023.

PS.: Special Cell, IFSO.

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Place: New Delhi

Dated: 14/2/25

Applicant

(Through Counsel)

Through



TUSHAR GUPTA

Advocate for the Applicant

Ph. 88601 04097

Ch. No-297, Patiala House Court,

New Delhi-110001

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**APPLICATION BY AND ON BEHALF OF MR. P. HAJI BASHA U/S 503
BNSS OR ANY OTHER APPROPRIATE SECTIONS OF THE SANHITA
FOR DE-FREEZING OF THE BANK ACCOUNT NO. 060405003054
WITH ICICI BANK HAVING IFSC CODE NO. ICICI0000604 AND
BANK ACCOUNT NO. 39671505216 WITH SBI BANK HAVING IFSC
CODE NO. SBIN0013281 IN THE INTEREST OF JUSTICE.**

Most Respectfully Showeth:

1. That the present application is being preferred by the applicant Mr. P. Haji Basha, seeking de-freezing of the bank account of the Applicant bearing account no. 060405003054 with ICICI Bank having IFSC Code no. ICICI0000604 and bank account no. 39671505216 with SBI Bank

having IFSC Code no. SBIN0013281 which had been marked debit freeze by the investigating agency in pursuance of the complaint filed by one Mr. Arun Kuamr Jain with the Cyber Cell, IFSO and National Cyber Crime Reporting Portal.

2. That the Applicant through his business concern M/s Citizen Carz has been running a business by buying and selling second hand cars and allied service and during the usual course of business, the Applicant had received payment for the services provided by the Applicant.
3. That to the shock and surprise of the Applicant the bank account of the Applicant was been marked debit freeze for said business transaction.
4. That upon inquiry it come to the knowledge of the Applicant that a complaint had been filed by one Mr. Arun Kumar Jain with Special Cell, IFSO regarding of cheating of Rs. 18.86 Cr by unknown persons in New Delhi and it has been alleged that out of the total sum, the payments made by the customer of the Applicant forms part of the alleged money trail through which the cheated amount had transferred from the complainant.
5. It is respectfully submitted that the Applicant is in no manner concerned with the present case and has been unnecessarily roped in the present case as firstly the Applicant had no knowledge of the alleged offence and secondly the said payment was received in the usual course of business for bona fide business transaction.
6. That for the above-mentioned transaction the entire bank account of the Applicant has been marked debit freeze which is causing grave prejudice and hardship to the Applicant as the Applicant is not able to conduct his business and earn his livelihood as the day-to-day transaction of the Applicant have been stopped.
7. Further, the Applicant is also not able to meet outside liabilities/ payments to third parties as banking services with the said saving bank

account of the Applicant have been suspended due to the debit freeze marked against the said bank account.

8. That the net result of the said action is that Applicant is not able to receive payments, not able to makes payments to vendors and several cheques issued by the Applicant to the other third parties prior to marking of the debit freeze are not being honored due the debit freeze marked against the said bank account, despite their being sufficient balance to honor the same. The Applicant is under a risk of incurring criminal liability under the Negotiables Instrument Act due to the debit freeze marked against the savings bank account of the Applicant.
9. That the Hon'ble Delhi High Court vide its order dated 16.07.2021 in matter titled **"Vijay Kumar Sharma and Anr. Vs Directorate of Enforcement W.P.(C) 6236/2021"** had passed the following directions:

3. In the light of this submission of the petitioner, Mr. Mahajan, learned counsel for the respondent was granted time to obtain instructions. Today, he submits that as only the amounts as on date available in these bank accounts have been attached and therefore, the respondents have no objection if the concerned banks are directed to permit the petitioners to operate these bank accounts subject to securing the amount available in these accounts as on date.

4. In view of the aforesaid stand taken by the respondents, the three banks namely- Kotak Mahindra Bank, Nobel Cooperative Bank and Punjab National Bank details whereof are noted hereinbelow are directed to permit the petitioners to operate these bank accounts subject to the available amount available in these accounts as on date being placed in FDRs in the name of the petitioners, which FDRs will not be released to the petitioners unless any orders to the contrary are passed by any competent Court or by the Appellate Tribunal....

5. Needless to state, once the aforesaid amount is secured by way of an FDR, the banks will permit the petitioners to operate these accounts, in the normal course of business.

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(Emphasis Supplied)

10. That the Applicant undertakes to abide by all the conditions imposed by the Hon'ble Court.

11. That the present application has been filed in the most bonafide manner and in the interest of justice.

PRAYER

It is therefore most respectfully prayed that the Hon'ble Court may be pleased to:

A. Pass necessary order and directions thereby directing de-freezing of the bank account no. 060405003054 with ICICI Bank having IFSC Code no. ICICI0000604 and bank account no. 39671505216 with SBI Bank having IFSC Code no. SBIN0013281 in the interest of justice.

AND

B. Pass any other appropriate orders and directions as the Hon'ble Court deems it fit and proper in light of the facts and circumstances of the case.

It is prayed accordingly.

Place: New Delhi

Dated: 14/2/25

Through

Applicant

(Through Counsel)



TUSHAR GUPTA

Advocate for the Applicant

Ph. 88601 04097

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